

9:00 A.M.

Calendar Lines # 4

Case Name Cecilia Marosi vs William Milks, III et al.

Case No. 25CV462150

Motion to Compel Compliance with Previous Court Order Regarding Discovery and Sanctions

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

On March 26, 2025,¹ Plaintiff Cecilia Marosi filed a Complaint alleging a legal malpractice, breach of fiduciary duty, and financial elder abuse against her former attorney Defendant Williams Milks, III who represented her and former spouse, Gilbert Marosi (Complaint). In 2013, Gilbert Marosi purchased a forest report on Almaden Road (“Twin Creeks”) for \$5 million and the title of Twin Creeks was transferred into a living trust of Gilbert and Cecilia Marosi (“Trust”), who are the beneficiaries. (Declaration of Edward T. Colbert, p. 2). In 2016 situations on the property resulted in interventions from government agencies. The tenants of Twin Creek filed a civil lawsuit that were eventually settled. (*Id.*). In 2018, Twin Creeks was sold to Midpeninsula Open District (“Midpen”) for \$2.8 million. (*Id.*). In 2021, Gilbert Marosi met with attorney William Milks, III, the plaintiff alleges that at the time, the defendant had no experience with complex land-use transactions. (*Id.*, at p. 3). In August 2022, the defendant filed a civil complaint against Fidelity National Title Company (“Fidelity”) on behalf of Gilbert Marosi (Santa Clara County docket No. 22CV402440)² that was verified by Gilbert Marosi. (*Id.*). In October 2022, Defendant filed a third lawsuit against TriCourt Bank on behalf of Gilbert Marosi and the plaintiff (Santa Clara County docket 22CV406644). The TriCourt Bank Complaint was verified by Gilbert Marosi alone. (*Id.*). The plaintiff states that the Fidelity suit was filed without her authorization to represent her in such cases and did not obtain consent to file any litigation in her name. (*Id.*).

B. RELEVANT PROCEDURAL BACKGROUND

On June 11, 2025, the propounded discovery, including Request for Production (“RFPD”), set one on the defendant. The plaintiff sought to obtain a complete case file of cases in Santa Clara County including dockets: 21CV388981 (Midpen); 22CV402440 (Fidelity); and 22CV406644 (TriCo) through request for production numbers 10-12. On July 11, 2025, Defendant served responses. Plaintiff averred that the responses to RFPD Nos. 10-12 were deficient, boilerplate objections, and evasive. Plaintiff argues that she is entitled to the electronically stored information (“ESI”) in RFPD Nos. 10-12 as the requests are narrowly tailored to seek ESI documents that comprise of the plaintiff’s client file, which the defendant is ethically obligated to release to Cecilia Marosi pursuant to Rule of Professional Conduct, Rule 1.16(e). After meet-and-confer attempts were unsuccessful, the plaintiff filed a motion to compel further responses to its RFPD, set one, Nos. 10-12 and requested sanctions in the amount of \$5,400.00. Defendants opposed the motion on March 9, 2026 and explained extenuating health circumstances and agreed to provide objection free responses. On March 19, 2026 the Court heard oral argument and ordered that the defendant provide responses to RFPD Nos. 10-12 and ESI withing 14 days of the hearing. The Court denied the request for \$5,400.00 in sanctions, but awarded sanctions in the amount of \$2,000.00 in favor of the plaintiff and ordered that the defendant pay the sanctions within 14 days of the hearing. A formal Order was signed on April 6, 2026.

On May 13, 2026, Plaintiff Cecilia Marosi filed a motion to compel Defendant William Milks, III to comply with the April 6, 2026 court order compelling discovery and sanctions. The plaintiff filed the motion pursuant to Code

¹ The Court identifies a typographical error in its March 19, 2026 tentative order that lists the wrong year the Complaint was filed as March 26, 2026. The Complaint was filed on March 26, 2025.

² The Fidelity case (Santa Clara County docket No. 22CV402440) was consolidated with a previous action filed against Midpen (Santa Clara County docket No. 21CV388981). The Midpen docket was designated as the lead case.

of Civil Procedure sections 2023.010(f) [evasive response to discovery], 2023.010(g) [disobeying court order to provide discovery], 2023.010(i) [failing to meet and confer in good faith], 2023.030(a) [monetary sanctions for misuse of discovery process], 2023.030(b) [issue sanctions for misuse of the discovery process], 2023.030(c) [evidence sanctions for misuse of the discovery process], 2031.310(h) [monetary sanctions] and 2031.310(i) [monetary sanctions for failure to comply with court order]. (Plaintiff's Notice of Motion, p. 2). The motion was accompanied by a proof of service indicating electronic mail service on May 13, 2026.

The plaintiff seeks the following relief: an Order compelling Defendant to provide code-compliant responses to Request for Production, set one, Nos. 10-12 as previously ordered by the Court after a March 19, 2026 hearing and April 6, 2026 Order; (2) enforcement of the court's prior terms mandating Defendants to produce the plaintiff's complete client files including all electronically stored information ("ESI") and e-mail correspondence exchanged between Defendant's jointly represented clients, Cecilia and Gibler Marois; (3) an order of evidence sanctions prohibiting Defendant from proffering certain evidence or in the alternative, an order of sanction prohibiting Defendant from opposing certain issues at hand. (Plaintiff's, Memorandum of Points & Authorities, p. 11-16).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

On June 4, 2026, the plaintiff filed a notice of non-receipt of opposition to its moving papers.

The Court carefully reviewed the following: Plaintiff's notice motion (totaling 4 pages); memorandum of points and authorities in support of the motion (totaling 18 pages); Declaration of Edward T. Colbert in support of the motion and attached Exhibits A-M (totaling 102 pages); Separate Statement (totaling 38 pages); Notice of non-receipt of opposition (totaling 4 pages); proof of services; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2023.030, subdivisions (a) through (e), the court is authorized, after notice and an opportunity for hearing, to impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: monetary sanctions, issue sanctions, evidence sanctions, terminating sanctions, and contempt. Code of Civil Procedure, section 2023.010, subdivision (g) provide that a misuse of the discovery process includes evasive responses to discovery. (Code Civ. Proc. § 2023.010(f)).

"The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. [Citation.]" (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992; *J.W. v. Watchtower Bible and Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1169). If a lesser sanction fails to curb misuse, a greater sanction is warranted. (*Doppes, supra*, 174 Cal.App.4th at p. 992). "Discovery sanctions 'should be appropriate to the dereliction, and should not exceed what is required to protect the interests of the party entitled to but denied discovery.'" (*Id.*).

"But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (*Id.*, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280); *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 702, quoting *Doppes* and *Mileikowsky*). The court should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the detriment to

the propounding party, and the number of formal and informal attempts to obtain discovery. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246).

III. ANALYSIS

Plaintiff avers that the Defendant has failed to comply with the March 19, 2026 hearing and April 6, 2026 formal order compelling Defendant to provide code-compliant responses to Plaintiff's Request for Production of Documents ("RFPD"), Set One, Nos. 10-12 with all responsive documents and electronically stored information ("ESI"). (Declaration of Edward Colbert, p. 6). The Court ordered the defendant to produce responses within fourteen days from the March 19 hearing date and also awarded sanctions in the amount of \$2,000.00 that were also to be paid within fourteen days from the hearing date. Fourteen days from the March 19, 2026 hearing is April 2, 2026 (*Id.*).

Plaintiff asserts that Defendant did not comply with the Court Order as it did not receive any further responses to RFPD Nos. 10-12 or the sanctions award within the fourteen day period. On April 14, 2026, the plaintiff sent correspondence to the defendant via e-mail to follow-up on the production of document. (*Id.*, and Exhibit F). Defendant responded that he was attempting to gather the required documents and would provide an update on April 17. (*Id.*, at p. 7). Plaintiff's counsel responded the next date confirming that he expected an update from Mr. Milks on April 17 and asked Defendant to confirm that his e-mail account was forensically imaged to ensure that production would be in the same native file and not simply in pdf form. (*Id.*, and Exhibit G). Plaintiff's counsel received no update from the defendant on April 17. (*Id.*). On April 20, Mr. Colbert reached out to the defendant regarding the court order and that a motion may be required. (*Id.*). Defendant responded that his ESI consultant was, "in the process of compiling the case file information" and that he would provide a status update when available. (*Id.*, and Exhibit H). That same day, the plaintiff's lead counsel, William A. Lapcevic e-mailed Mr. Milks to address compliance with the prior court order and to immediately provide the identity of his ESI consultant. (*Id.*). Counsel continued to meet-and-confer. (*Id.*, and Exhibit I).

On April 23, 2026, plaintiff's counsel received an envelope with Defendants Milks containing a cover letter dated April 22, 2026 stating that the thumb drive contained, "the case files for Santa Clara County Superior Court Cases No. 21CV388981, 22CV402440 and 22CV406644 regarding the document production relating to the subject case." (*Id.*, at p. 7-8; Exhibit J); a thumb drive; and a check in the amount of \$2,000.00 as ordered by the Court on March 19, 2026.

It is unopposed that the defendant complied with payment of sanctions of \$2,000.00 by submitting a written check to Plaintiff's counsel on April 23, 2026. (*Id.*, at p. 7). It is noted that the payment was late, but given that the full amount of sanctions was paid, the Court will not comment further on the payment of sanctions.

As to the further responses to RFPD Nos. 10-12, upon examination of the contents of the thumb drive, Plaintiff's counsel found that it only contained pleadings and exhibits filed with the Court in Santa Clara County Superior Court Cases No. 21CV388981, 22CV402440 and 22CV406644 that were publicly available. (*Id.*, at p. 8). Per Plaintiff's counsel, the contents of the thumb drive did not contain the following: e-mail correspondence between Defendant and his jointly represented clients, Plaintiff and/or Gilbert Marosi; (2) invoices for legal services rendered; (3) attorney client engagement agreements; (4) memoranda; (5) complete sets of discovery requests and responses; (6) document productions; (7) transcripts of any kind; and (8) objection free responses to Plaintiff's RFPD, Set One, Nos. 10-12. (*Id.*). Plaintiff's contacted Defendant Milks on May 1, 2026 regarding the deficiencies and offered Mr. Milks a chance to disagree with the characterization of the contents of the thumb drive and provided more time to comply to May 6, 2026. (*Id.*, and Exhibit K). Defendant responded on May 12, stating that he produced the entirety of Plaintiff's case files for the three cases No. 21CV388981, 22CV402440 and 22CV40664 and that he does not have access to ESI in connection with the case file under Rule of Court 2.502(3) and (4). (*Id.*, and Exhibit L). In response,